

CHAPTER 34.

An Act to make provision for the control and regulation of traffic in and near London, and for purposes connected therewith.

[7th August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Constitu-
tion of
Advisory
Committee.

1.—(1) With a view to facilitating and improving the regulation of traffic in and near London, there shall, for the purpose of giving advice and assistance in manner provided by this Act to the Minister of Transport (hereinafter referred to as the Minister) in connection with the exercise and performance of his powers and duties in relation to traffic within the area described in the First Schedule to this Act (hereinafter referred to as the London Traffic Area) be constituted a committee, to be called the London and Home Counties Traffic Advisory Committee and hereinafter referred to as the Advisory Committee consisting of a chairman elected by the Committee and such ordinary and additional members as are hereinafter mentioned.

(2) Of the ordinary members—

One shall be appointed by a Secretary of State :

Two shall be appointed by the London County Council :

One shall be appointed by the Corporation of the City of London :

Two shall be appointed by the councils of the metropolitan boroughs :

One shall be appointed by the councils of the administrative counties mentioned in the First Schedule to this Act, other than the administrative county of London lying north of the Thames :

One shall be appointed by the councils of the administrative counties mentioned in the First Schedule to this Act, other than the administrative county of London lying south of the Thames :

One shall be appointed by the councils of the several county boroughs within the London Traffic Area :

One shall be a representative of the metropolitan police appointed by a Secretary of State :

One shall be a representative of the City police appointed by the Corporation of the City of London :

One shall be appointed by the Minister :

Where one or more members are to be appointed by a group of local authorities, the appointment shall be made by a joint committee consisting of one representative chosen by each of the local authorities in accordance with rules of procedure made by the Minister :

Every ordinary member appointed by a local authority or group of local authorities other than the representative of the City police shall be a member of the local authority or of one of the grouped authorities, as the case may be, and, if he cease to hold such qualification, shall cease to be a member of the Committee.

(3) Of the additional members—

Three shall be representatives of the interests of labour engaged in the transport industry within the London Traffic Area appointed by the Minister of Labour after consultation with such bodies representative of those interests as he may think fit :

Four shall be representatives of the interests of persons providing means of transport and users of mechanically propelled and horse-drawn road vehicles within the London Traffic Area appointed by the Minister after consultation with such bodies representative of those interests as he may think desirable.

(4) The ordinary members shall form part of the committee on all occasions, and the additional members shall form part of the committee when considering and reporting to and advising the Minister upon any matter referred to the committee under or by virtue of section ten of this Act, or any matter or question referred to the committee under this Act in connection with the matters specified in Part I. of the Second Schedule to this Act :

Provided that the Minister may, if he thinks fit, direct that in any particular case the additional members shall form part of the committee when considering and reporting to and advising him upon any matter or question referred to the committee under this Act in connection with any of the matters mentioned in Part II. of the said Schedule.

(5) A person shall be disqualified for being appointed or being an ordinary member of the Advisory Committee if he is a director of a company or a partner in a firm or is in the employment of a company or firm engaged in providing any means of transport within the London Traffic Area.

(6) The term of office of the members of the Advisory Committee first appointed shall be from the date of appointment until the first day of December, nineteen hundred and twenty-five, and, subject to the provisions as to the term of office of persons appointed to fill casual vacancies, the term of office of persons subsequently appointed shall be three years ; but a person going out of office may be reappointed. The chairman shall go out of office on the day on which the members of the committee by whom he is elected ordinarily go out of office.

(7) If any member of the Advisory Committee without having received leave of absence by a resolution of the committee fails for a period of six months to attend duly summoned meetings of the Committee, or of a sub-committee on which he has been appointed to serve, his seat shall thereupon become vacant, and he shall not be eligible for reappointment in respect of that vacancy.

(8) On a casual vacancy occurring on the Advisory Committee by reason of death, resignation, or otherwise,

the vacancy shall be filled by the appointment of a new member in like manner as the member in whose place he is appointed, and he shall hold office until the time when the member in whose place he is appointed would have gone out of office, and shall then go out of office. The foregoing provision shall apply to the chairman with the substitution of "election" for "appointment" and of "elected" for "appointed." If an ordinary member or an additional member is elected chairman, his election shall not create a casual vacancy.

(9) The Minister may place at the disposal of the Advisory Committee the services of such of the officers and servants of the Ministry of Transport as appear to him to be required for the purpose of the proper discharge of the duties of the Committee.

(10) The Advisory Committee may make rules for regulating their procedure (including the fixing of a quorum, and the appointment, powers, duties and procedure of sub-committees) and for regulating the procedure at any inquiry held by the Advisory Committee or by any members thereof under this Act; and the additional members shall form part of the Advisory Committee when considering and making such rules of procedure.

(11) The Advisory Committee shall make an annual report of their proceedings to the Minister, which shall be laid before Parliament.

(12) The proceedings of the Advisory Committee shall not be invalidated by any vacancy in their number or any defect in the appointment of any member.

2. It shall be the duty of the Advisory Committee to consider and report to the Minister on any matters within the scope of the provisions of this Act, and to report to and advise the Minister upon such matters and questions as may be referred to them under this Act, or as the Minister may from time to time refer to them in connection with any of the matters mentioned in the Second Schedule to this Act.

Duties of
Advisory
Committee.

3.—(1) In any case where the Advisory Committee think it desirable or expedient so to do, the Committee may, before advising and reporting to the Minister

Power of
Advisory
Committee
to hold
inquiries.

on any matter referred to them in pursuance of this Act, appoint one or more of their number to hold, or may if they think it advisable, themselves hold such public inquiry into the matter as they may think fit, and when one or more members of the Advisory Committee are appointed to hold the inquiry they shall make a report thereon to the Committee.

(2) Before any such inquiry is held the Advisory Committee shall give public notice of the date and place at which the inquiry will be held and of the matters to be dealt with at the inquiry, and any person affected may make representations to the member or members holding the inquiry, or in the case of an inquiry held by the Advisory Committee themselves to that Committee, and, unless in their discretion such member or members or the Committee consider it unnecessary, any such person shall be heard at the inquiry: Provided that, for the purposes of this provision, the Corporation of the City of London and the council of any county, borough or district wholly or partly comprised in the London Traffic Area shall be deemed to be persons affected and shall have the right to be heard in any case where such corporation or council, or any persons represented by them, may be affected by any such inquiry.

(3) In any case where the Minister thinks it expedient or proper so to do, the Minister may delegate to the Advisory Committee the duty of holding any inquiry respecting any matter affecting traffic within the London Traffic Area which under any other Act the Minister is authorised or required to hold, and where the Minister has so delegated any such duty, the Advisory Committee shall appoint one or more of their number to hold, or may if they think it advisable themselves hold such inquiry as is required under the Act in respect of which the duty has been delegated, and when one or more members of the Advisory Committee are appointed to hold the inquiry they shall make a report to the Committee.

Closing of :
streets for
works.

4.—(1) With a view that the times for the execution of works of road maintenance and improvement by various road authorities within the London Traffic Area may be so arranged as to mitigate as far as possible the congestion of traffic due to the closing of streets for the

purposes of the execution of such works, it shall be the duty of every road authority within that area to submit to the Minister, on or before such half-yearly dates in each year as the Minister may fix, a statement in such form and containing such particulars as the Minister may require of all works of road maintenance and improvement proposed to be commenced or continued by the authority during the periods of six months commencing at the expiration of such interval, not being less than two months, after the said half-yearly dates as the Minister may fix, being works of such a nature as will involve the closing to vehicular traffic of any part of any street to which this section applies either absolutely or to the extent of one-third or more of the width of the carriageway.

(2) The Minister shall refer all such statements to the Advisory Committee, and it shall be the duty of that Committee to consider the proposals contained in such statements in relation to one another and report to the Minister thereon; and the Minister, after considering the report, shall draw up schemes prescribing the times during which the several works are to be commenced and the order in which they are to be executed, or prohibiting or restricting the execution of any such works, and shall send copies of any such scheme to all road authorities and undertakers affected thereby, and

- (a) if within fourteen days after copies of any scheme have been so sent, no objection in writing to the scheme has been received by the Minister from any road authority or undertakers affected thereby, or every such objection has been withdrawn, the Minister may by order confirm the scheme;
- (b) if any such objection has been received by the Minister within such time and has not been withdrawn, the Minister may, after considering the objection, either by order confirm the scheme with or without amendments, or revoke the scheme;

and upon the confirmation of any such scheme it shall become final and binding on all the road authorities affected and shall not be subject to appeal to any court:

Provided that the Minister may subsequently by order modify any such scheme in so far as it imposes any prohibition or restriction on the execution of any works in such manner as he may consider expedient.

(3) With a view to securing that, so far as possible, all works involving the breaking up of streets by any undertakers having statutory powers to break up streets (including any Government Department) shall be carried out at the same time as or in connection with works of road maintenance and improvements, the Minister shall send to all such undertakers copies of the proposals of the road authorities when received by him under this section so far as they relate to streets to which the powers of the undertakers extend and shall consider any representations made to him by such undertakers; and where works of road maintenance and improvement involving the closing of a street to such extent as aforesaid have been executed in accordance with any such scheme, it shall not be lawful for any such undertakers within twelve months of completion of those works to break up the street or part of the street so closed without the previous consent of the Minister and unless they prove to the satisfaction of the Minister that there were reasonable grounds for their failure or omission to execute whilst the street or part thereof was closed the works for the execution of which they require to break up the street and that it is essential that the works should be executed or commenced within the said twelve months; and the Minister may, if he thinks fit, make it a condition on giving his consent under this subsection to the breaking up of the street or part thereof that all works in connection therewith shall be carried out at night by commencing the same after the hour of eight in the evening and completing the same by the hour of eight in the morning, and if not then completed by carrying on the same continuously by day and night.

(4) Nothing in this section shall prevent any road authority or any such undertakers as aforesaid from carrying out works in any streets in cases of emergency, or prevent any such undertakers from making, altering, repairing or disconnecting service connections.

(5) The streets to which this section applies are such streets or streets of such classes within the London

Traffic Area as may be prescribed by an order made by the Minister.

5.—(1) If it appears to any officer of police authorised for the purpose that, in the exercise of any power to break up streets within the London Traffic Area, any undertakers, by the deposit of excavated matter or other material, or by means of the erection of barriers, or otherwise, have created an obstruction in the street to a greater extent or for a longer period than is reasonably necessary, he shall report the matter to the road authority and the road authority shall cause an inspection to be made, and, if on such inspection it appears to them that the allegation is well founded, they may, by notice in writing, require the undertakers to take such steps as may be necessary to mitigate or discontinue the obstruction; and, if the undertakers fail to do so within twenty-four hours of the receipt of the notice, the road authority may themselves take the necessary steps and may recover any expenses properly incurred by them in connection therewith from the undertakers summarily as a civil debt:

Provision for mitigating obstruction to traffic.

Provided that, if within the said twenty-four hours the undertakers represent to the Minister that the obstruction to which the notice relates is not greater or has not been continued for a longer period than is reasonably necessary and send to the road authority a copy of the representations so made, the road authority shall not exercise the powers conferred by this section without the consent of the Minister.

(2) A road authority may, if they think fit, delegate to the road surveyor or other officer of the authority the powers of causing inspection to be made and of issuing requisitions conferred on the authority by this section.

6.—(1) As respects the area consisting of the city of London and the metropolitan police district, any licensing authority may, with the view to securing the public safety and the convenience of traffic, define, by reference to terminal points and to the course to be followed between those points, the routes (hereinafter called “approved routes”) within the area of its licensing jurisdiction upon which regular services of omnibuses may be established. Any person who proposes to establish a regular service of omnibuses within the area of the licensing jurisdiction of any such licensing authority

Power to attach conditions to grant of omnibus licences plying in the city of London and the metropolitan police district.

upon a route which is not an approved route may apply to the licensing authority to define that route as an approved route, and in the event of the licensing authority refusing so to define such route an appeal shall lie to the Minister, who may, if he thinks fit, define the route, either as originally proposed, or subject to such alterations as he thinks proper, and any route so defined by the Minister shall be deemed to be an approved route.

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Geo. 5. c. 72.

(2) When licensing an omnibus to ply for hire within the area aforesaid, the licensing authority may, subject to the right of appeal to the Minister given by subsection (3) of section fourteen of the Roads Act, 1920, attach to any such licence all or any of the following conditions, that is to say :—

- (a) a condition that the omnibus shall not ply for hire upon specified approved routes or any specified parts thereof, but such condition shall be imposed only on the ground that the omnibus is by reason of its construction or equipment unsuitable for use on such routes or parts thereof;
- (b) a condition that the omnibus shall not, without the consent of the licensing authority, which consent may be either of special or of general application, and may be either absolute or subject to any conditions, ply for hire except upon approved routes;
- (c) a condition that the omnibus shall not, without such consent as aforesaid, ply for hire except in maintaining a regular service;

and, if any person to whom a licence is granted subject to any such condition fails to comply with the condition, he shall be liable on summary conviction to a fine not exceeding five pounds, and, if a person is convicted of a second or subsequent offence under this subsection, the licensing authority may, if they think fit, revoke or suspend the licence for the omnibus in respect of which the second or subsequent offence was committed.

(3) Where a licensing authority have defined approved routes, the authority may, with a view to attaching such conditions as aforesaid to licences, require

in writing that all or any licences for omnibuses to ply for hire within the area aforesaid issued by them shall, within fourteen days of such requirement, be surrendered to them, and may issue in substitution for the licences so surrendered licences expiring on the same date as the licences so surrendered, and attach to any such substituted licences all or any of such conditions as aforesaid, and any licence so required to be surrendered shall, if not surrendered in accordance with the requirement, cease to have effect at the expiration of the said fourteen days, and, if so surrendered, shall cease to have effect on the issue of such substituted licence.

(4) A person to whom a licence for an omnibus has been granted subject to the condition that it shall not ply for hire except in maintaining such a regular service as aforesaid shall, within seven days or such other period as the Minister may fix after such condition has been first imposed, deposit with the licensing authority a schedule in such form and identified in such manner as the licensing authority may require, showing—

- (a) the approved routes upon which he intends to establish a regular service of omnibuses;
- (b) the time at which the service on each route is to commence and end on each day;
- (c) the service to be maintained on each such route, distinguishing, if the service to be maintained on different days or at different hours is to vary, the service to be maintained on the several days or at the several hours;
- (d) the maximum number of omnibuses to be used to maintain such service on each such route distinguishing, if the service is to vary on different days, the maximum number to be so used on the several days;
- (e) the stages into which he intends to divide each route and the fares which he intends to charge in respect of such stages, distinguishing, if the stages and fares are to vary on different days or at different hours, the stages and fares on the several days and at the several hours;

and shall supply to the licensing authority such number of copies of the deposited schedule as the authority may require.

(5) On any such schedule being deposited with the licensing authority in accordance with the foregoing provisions, the same shall come into force, but the licensing authority shall send copies thereof to every person who is providing a regular service of omnibuses upon any route or any substantial portion of any route included in the schedule, and any such person shall have the right within seven days, or such other period as the Minister may fix, of receiving such copy to appeal to the Minister on the ground—

- (a) that having regard to the number of omnibuses to be used for maintaining the service on any route, an increase in the service on that route specified in the schedule may reasonably be required either generally or during particular hours; or
- (b) that having regard to the service to be maintained on any such route the maximum number of omnibuses to be used in maintaining the service is excessive;

and the Minister on such appeal, after giving the holder of the licence an opportunity of being heard, may make such order amending the schedule as he may think fit.

The Corporation of the City of London and the council of any county, or borough, or district wholly or partly within the area aforesaid, shall have the right at any time of appealing to the Minister against any schedule for the time being in force on the ground that any of the stages specified therein are unreasonably short or inconvenient or that any of the fares so specified are unreasonably high, and the Minister on such appeal, after giving the holder of the licence an opportunity of being heard, may make such order amending the schedule as he may think fit.

When an order amending a schedule has been made under this subsection the schedule shall have effect subject to the amendments made in the order.

(6) The holder of such a licence may at any time, but, subject as in the next following section provided, only at intervals of not less than four weeks, amend any such schedule or substitute a new schedule therefor by depositing with the licensing authority the proposed amendment or new schedule in such form and identified

in such manner as the licensing authority may require, and shall send to the licensing authority such number of copies of the proposed amendment or new schedule as the licensing authority may require; and on the deposit of the amendment or new schedule the schedule proposed to be amended shall have effect subject to the amendment or, as the case may be, the new schedule shall be substituted for the schedule previously in force, subject in either case to the like right of appeal to the Minister as in the case of the original schedule:

Provided that, where a schedule has been amended on appeal to the Minister, no amendment to the schedule, nor any schedule to be substituted therefor, shall be so deposited within four weeks after the schedule as amended by the Minister came into force.

(7) The Minister may make regulations with respect to the procedure on appeals under this section, and those regulations may provide for the appointment of a person or two or more persons to hold a public inquiry in such manner as may be prescribed into the subject matter of the appeal and for enabling the person or persons so appointed—

- (a) to determine by whom and in what manner the costs of the appeal (including the remuneration of the person or persons appointed to hold the inquiry and any other expenses of the Minister) are to be borne;
- (b) to take evidence on oath and for that purpose to administer oaths;
- (c) by order to require any person subject to the payment or tender of the reasonable expenses of attendance to attend as a witness and give evidence or produce any documents in his possession or under his control which relate to any matter in question at the inquiry and are such as would be subject to production in a court of law.

If any person fails without reasonable excuse to comply with any requirement contained in any such order, he shall, on summary conviction, be liable to a fine not exceeding five pounds.

(8) Where a person deposits a schedule (whether original or substituted) or an amendment to a schedule

under this section, he shall send to the Minister such number of copies thereof as the Minister may require, and the copies so sent to the Minister shall be open to inspection by any person at all reasonable hours, and any person shall be entitled to make copies thereof or extracts therefrom.

(9) If a person to whom a licence for an omnibus has been granted subject to the condition that it shall not ply for hire except in maintaining a regular service, fails to deposit a schedule as required by this section, or, except when prevented by accident or other unavoidable cause, or by a stoppage of work caused by an industrial dispute, or when otherwise authorised by the licensing authority, fails to establish or maintain a service in accordance with the schedule for the time being in force with respect to his omnibuses, or uses for the maintenance of any service a greater number of omnibuses than the maximum specified in such schedule or charges different fares or fares with respect to different stages from those specified in such schedule, he shall be liable on summary conviction to a fine not exceeding five pounds, and, if a person is convicted of a second or subsequent offence under this subsection, the licensing authority may, if they think fit, but subject to a right of appeal to the Minister, revoke or suspend all or any of the licences granted to the offender.

(10) Proceedings for an offence under this section shall not be instituted except by or on behalf of a licensing or police authority.

Power to limit the number of omnibuses plying on certain streets within the city of London and the metropolitan police district.

7.—(1) Where as respects any street or part of a street within the area consisting of the city of London and the metropolitan police district, the Minister is of opinion that by reason—

- (a) of the width of the street or part of the street or the density of traffic thereon; or
- (b) of the existence of alternative facilities for the conveyance of passengers along the street or part of the street or in proximity thereto, or of the omnibus accommodation on the street or part of the street being excessive;

it is desirable that an order under this section shall be made, he may by order declare the street or part of the

street to be a street in which the plying for hire by omnibuses ought to be prohibited or restricted either generally or during particular hours, and a street or part of a street with respect to which such an order is made is hereinafter referred to as a "restricted street."

(2) Where the Minister has so declared any street or part of a street to be a restricted street, the Minister may make regulations—

- (a) prohibiting or restricting the plying for hire by omnibuses in the street either generally or during particular hours, or limiting the aggregate number of journeys which may be made in either direction along the street during particular hours by omnibuses plying for hire;
- (b) determining the omnibus proprietors whose omnibuses alone may ply for hire on the street and apportioning amongst those proprietors such aggregate number of journeys as aforesaid; but so, nevertheless, that the right so to ply shall not be limited to the omnibuses of one proprietor in any case where it appears to the Minister to be reasonable and practicable that the right should be exercised by other omnibuses also; and
- (c) conferring on a licensing authority such powers as he may deem necessary to enable them to secure the observance of the regulations;

and the regulations may provide for dispensing with or relaxing the restrictions imposed thereby in such circumstances and in such manner as may be provided in the regulations.

(3) Where in consequence of any such regulations it is necessary for any proprietor to amend the schedule of services for the time being in force with respect to his omnibuses, he may do so notwithstanding that such an interval of four weeks as is mentioned in the last preceding section has not elapsed.

(4) If any person contravenes or fails to comply with any such regulations, he shall be liable on summary conviction to a fine not exceeding five pounds, and on the conviction of a person for a second or subsequent

offence under this subsection, the licensing authority shall notify the Minister of the conviction, and the licensing authority, if so directed by the Minister, shall thereupon revoke or suspend all or any licences to ply for hire in the area aforesaid which they may have granted to the offender in respect of omnibuses :

Provided that proceedings for any such offence shall not be instituted except by or on behalf of a licensing or police authority.

(5) Before making an order declaring any street or part of a street to be a restricted street, or making any regulations under this section, the Minister shall give such notice of his intention to make the order or regulations, as the case may be, as he may think best adapted for informing persons affected, and shall refer the matter to the Advisory Committee for their advice and report.

(6) Any regulation made under this section shall be laid before both Houses of Parliament forthwith; and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new regulation.

Reports to
Parliament
on holders
of omnibus
licences.

8.—(1) It shall be the duty of the proprietor of any omnibus, licensed subject to the condition that it shall not ply for hire except in maintaining a regular service as aforesaid, to keep such records and to make to the Minister such returns as the Minister may require.

(2) The Minister shall annually make a report to Parliament containing such of the returns so furnished to him, together with such comments thereon, and on the results of operating the said services, as he may think fit, and it shall be the duty of every such proprietor as aforesaid to furnish to the Minister such information, and to produce to him such accounts, books and documents as he may require for the purpose of preparing such report or otherwise carrying out his duties under this Act, or as he may consider to be necessary for the purposes of any inquiry held under this Act.

(3) An order of the Minister requiring any person to fulfil any duty imposed by this section shall be enforceable by the High Court on the application of the Minister in any of the ways referred to in section three of the Railway and Canal Traffic Act, 1854.¹

17 & 18 Vict.
c. 31.

9. Where a police constable in uniform is for the time being engaged in the regulation of traffic at any place in a street within the London Traffic Area, any person driving or propelling any vehicle who wilfully neglects or refuses to stop the vehicle or make it proceed or keep to a particular line of traffic when directed so to do by such police constable in the execution of his duty shall, on summary conviction, be liable to a fine not exceeding five pounds.

Penalties
for dis-
obedience to
directions
of police.

10.—(1) For the purpose of relieving congestion and facilitating traffic in and near London, the Minister may make regulations to have effect in the London Traffic Area, or any such part thereof or places or streets therein, as may be specified in the regulations, for any of the purposes or with reference to any of the matters set out in the Third Schedule to this Act, and special regulations applicable only at special times or on special occasions may be so made:

Power to
make
regulations.

Provided always that no such regulations shall interfere with street markets nor (so far as respects matters which may be dealt with by regulations under section one of the Metropolitan Streets Amendment Act, 1867) with street traders.

30 & 31 Vict.
c. 134.

(2) Any regulations so made by the Minister may provide for the suspension or modification so long as the regulations remain in force of any provisions of any Acts (whether public general, or local or private) byelaws or regulations, dealing with the same subject matter as the regulations made by the Minister, or of any Acts conferring power of making byelaws or regulations dealing with the same subject matter, so far as such provisions apply to any place or street to which the regulations made by the Minister apply.

(3) Any such regulations may provide for imposing fines recoverable summarily in respect of breaches thereof not exceeding in the case of a first offence twenty pounds, or in the case of a second or subsequent offence fifty pounds, together with, in the case of a continuing

offence, a further fine not exceeding five pounds for each day the offence continues after notice of the offence has been given in such manner as may be prescribed by the regulations.

(4) Before making any regulations under this section, the Minister shall refer the matter to the Advisory Committee for their advice and report.

(5) Before making any regulations under this section which will impose new or additional duties on the police, the Minister shall consult the Secretary of State.

(6) The making of any regulations under this section shall be conclusive evidence that the requirements of this section have been complied with.

(7) Any regulation made under this section shall be laid before both Houses of Parliament forthwith; and, if an address is presented to His Majesty by either House of Parliament within the next subsequent twenty-eight days on which that House has sat after any such regulation is laid before it praying that the regulation may be annulled, it shall thenceforth be void, but without prejudice to the validity of anything previously done thereunder or the making of a new regulation.

Limitation
upon imposi-
tion of ex-
penses upon
local
authorities.

11. Nothing in this Act shall be construed as giving power to the Minister to impose any obligation upon a local authority to incur any expenditure on or in connection with the improvement of any road or the construction of any new road without consent of such local authority.

Notice of
and in-
quiries into
accidents.

12.—(1) Where, owing to the presence of a vehicle on any road, an accident occurs within the London Traffic Area and it appears to the Minister that—

- (a) the nature and character of the road or of the road surface was the sole or a contributory cause of the accident; or
- (b) a defect in design or construction of the vehicle or in the materials used in the construction of the road or of the vehicle was the sole or a contributory cause;

the Minister, if he thinks fit, may cause an inquiry to be held into the cause of the accident.

(2) Where an accident occurs within the London Traffic Area resulting in the death of any person, and it is alleged that the accident was due to the nature or character of any road or road surface or to a defect in the design or construction of any vehicle or in the materials used in the construction of any road or vehicle, the coroner holding inquiry into the cause of death shall send to the Minister, or to such officer of the Ministry of Transport as the Minister may direct, notice in writing of the time and place of holding the inquest, and of the adjourned inquest, and any officer appointed by the Minister for the purpose shall be at liberty at any such inquest to examine any witness, subject nevertheless to the power of the coroner to disallow any question which in his opinion is not relevant or is otherwise not a proper question.

(3) Section twenty of the Ministry of Transport Act, 1919 (which relates to the holding of inquiries), shall apply to inquiries held for the purposes of this section in like manner as it applies to inquiries for the purposes of that Act. 9 & 10 Geo.5.
c. 50.

13.—(1) It is hereby declared that nothing in this Act is to be treated as conferring on any omnibus proprietor any right to the continuance of any benefits arising from the grant of licences, or from any conditions attached to licences, or from any orders, schedules or regulations for the time being in force under this Act. Protection
of public
interests.

(2) In the event of any undertaking providing means of transport within the London Traffic Area being purchased compulsorily by any local or public authority, that part of the value of the undertaking attributable directly or indirectly to this Act, or to any orders, schedules or regulations made thereunder, shall not be taken into account.

14.—(1) It shall be the duty of the proprietor of any omnibus which is licensed subject to the condition that it shall not ply for hire except in maintaining a regular service, to supply to the Minister on such form as the Minister may determine— Particulars
to be sup-
plied by
licence-
holders.

- (a) full particulars of any agreement or arrangement, written or verbal, whereby his business

is controlled (whether through shareholding or nomination of directors, or as the result of a loan or other financial transactions or otherwise) by any other person who is engaged in providing any form of transport service in the London traffic area or elsewhere, or in the manufacture or supply of vehicles, plant or equipment, or requisites for any such service or in financing persons so engaged; and

- (b) full particulars as to the holding or beneficial interest of the proprietor in stocks, shares, or securities of any company which is so engaged as aforesaid.

(2) Particulars to be supplied by a proprietor of an omnibus under this section shall be supplied by him within fourteen days after the grant of the licence for the omnibus, and as respects any interests created or arising during the currency of a licence shall be supplied within fourteen days after such interests are created or have arisen:

Provided that, where particulars have been duly supplied by a proprietor on the grant of a licence for an omnibus, particulars need not be supplied by him on the grant of a licence for any other omnibus belonging to him which is granted within a period of one year after the date of the first-mentioned licence.

(3) If any person refuses or neglects to supply any particulars which he is required to supply under this section, or knowingly supplies any particulars which are false in any material respect, he shall be liable on summary conviction to a fine not exceeding one hundred pounds, or in the case of a continuing offence to a fine not exceeding twenty pounds for every day during which the offence continues.

(4) All particulars required to be supplied under this section shall be treated as confidential except where the person supplying the same otherwise agrees, or where the Minister considers that it is in the public interest that they should be included in a report to Parliament under this Act, or where the Minister considers that the disclosure of the same is requisite for

the purposes of any inquiry under this Act, or, in cases where legal proceedings are taken, for the purpose of those proceedings.

If any person discloses or publishes, in contravention of this subsection, any particulars which are to be treated as confidential, he shall be liable on summary conviction to a fine not exceeding one hundred pounds.

15. All expenses incurred in connection with the execution of powers and duties under this Act by the Minister or the Advisory Committee or the members thereof (including the remuneration of any officers and servants of the Ministry of Transport placed at the disposal of the Committee by the Minister, or such apportioned part of such remuneration as the Treasury may determine to be proper) shall, to such amount as may be sanctioned by the Treasury, be defrayed out of the Road Fund. **Expenses.**

16. For the purposes of this Act, unless the context otherwise requires— **Definitions.**

The expressions “street” and “road” respectively include any highway and any bridge carrying a highway, and any lane, mews, footway, square, court, alley or passage whether a thoroughfare or not;

The expression “road authority” in relation to any street or road means the county council, the common council of the City of London, the borough council or district council, as the case may be, for the time being charged with the duty of maintaining or repairing the street or road;

The expression “borough” includes “metropolitan borough”;

The expression “omnibus” includes every omnibus, char-a-banc, wagonette, brake, stage-coach, or other carriage not being a trolley vehicle or tramway car plying for hire by, or used to carry, passengers at separate fares;

The expression “trolley vehicle” means a mechanically propelled vehicle adapted for use upon roads without rails and moved by power transmitted thereto from some external source;

59 & 60 Vict.
c. 48.

The expression "tramway car" includes any carriage used on any street or road in the London traffic area by virtue of an order made under the Light Railways Act, 1896;

32 & 33 Vict.
c. 115.

The expression "licensing authority" in relation to omnibuses within the area comprising the City of London and the metropolitan police district means any authority appointed by the Secretary of State for the purpose under the Metropolitan Public Carriages Act, 1869;

The expression "undertakers" includes any local or public authority, company, or individual having powers to break up streets for the purposes of any sewerage system or any water, gas, electricity, tramway, or other undertaking;

The expression "proprietor" in relation to any omnibus includes a person having the use of an omnibus under a hiring or hire-purchase agreement.

Short title
and com-
mencement.

17.—(1) This Act may be cited as the London Traffic Act, 1924, and shall come into operation on the appointed day, and the appointed day shall be such day not being later than the first day of October, nineteen hundred and twenty-four, as the Minister may by order appoint, and different days may be appointed for different purposes and for different provisions of this Act.

(2) This Act shall continue in force until the first day of December, nineteen hundred and twenty-eight:

Provided that the expiration of this Act shall not affect any penalty, forfeiture, or punishment previously incurred under this Act or under any regulations made under this Act, or affect any legal proceeding or remedy in respect of any such penalty, forfeiture, or punishment, and any such legal proceeding or remedy may be instituted, or continued, or enforced, and such penalty, forfeiture, or punishment may be imposed as if this Act had not expired.

SCHEDULES.

FIRST SCHEDULE.

Section 1.

The London traffic area shall include the following areas :—

The administrative county of London ;

The administrative county of Middlesex ;

The county boroughs of Croydon, East Ham, and West Ham ;

So much of the administrative county of Buckingham as comprises :—

The urban districts of Beaconsfield, Eton, and Slough ;

The rural district of Eton ;

The parishes of Amersham, Chalfont St. Giles, Chalfont St. Peter, Chenies, and Penn ; Coleshill Hamlet and Seer Green Chapelry in the rural district of Amersham ;

So much of the administrative county of Essex as comprises :—

The urban districts of Barking Town, Brentwood, Buckhurst Hill, Chingford, Epping, Grays Thurrock, Ilford, Leyton, Loughton, Romford, Tilbury, Waltham Holy Cross, Walthamstow, Wanstead, and Woodford ;

The rural districts of Billericay, Epping, Ongar, Orsett, and Romford ;

So much of the administrative county of Hertford as comprises :—

The boroughs of St. Albans, Hertford and Watford ;

The urban districts of Barnet, Bushey, Cheshunt, Chorleywood, East Barnet Valley, Harpenden, Hoddesdon, Rickmansworth and Ware ;

The rural districts of Barnet, Hatfield, Hertford, St. Alban's, Ware, Watford and Welwyn ; and the detached part (lying between the rural districts of Ware and Epping) of the parish of High Wych in the rural district of Hadham :

So much of the administrative county of Kent as comprises :—

The boroughs of Bromley and Gravesend ;

The urban districts of Beckenham, Bexley, Chislehurst, Crayford, Dartford, Erith, Northfleet, Penge, Sevenoaks and Sidcup ;

The rural districts of Bromley and Dartford ;

The parishes of Brasted (excluding the detached portion), Chevening, Dunton Green, Halstead, Kemsing, Otford, Riverhead, Seal, Sevenoaks Weald, Shoreham, Sundridge, and Westerham, in the rural district of Sevenoaks :

So much of the administrative county of Surrey as comprises :—

The boroughs of Guildford, Kingston-upon-Thames, Reigate, Richmond, and Wimbledon ;

The urban districts of Barnes, Beddington and Wallington, Carshalton, Caterham, Chertsey, Coulsdon and Purley, Dorking, East and West Molesey, Egham, Epsom, Esher and the Dittons, Ham, Leatherhead, Merton and Morden, Mitcham, Surbiton, Sutton, The Maldens and Coombe, Walton-upon-Thames, Weybridge, and Woking ;

The rural district of Epsom ;

The parishes of Bisley, Byfleet, Pyrford, and Thorpe in the rural district of Chertsey ;

The parishes of Dorking Rural, Effingham, and Mickleham in the rural district of Dorking ;

The parishes of Addington, Bletchingly, Chelsham, Crowhurst, Farleigh Godstone (except the detached portion), Limpsfield, Oxted, Tandridge (except so much of the said parish as lies to the south of an imaginary straight line drawn from the point where the western boundary of the said parish joins the southern boundary of the parish of Godstone to the point where the eastern boundary of the said parish joins the southern boundary of the parish of Crowhurst), Tatsfield, Titsey, Warlingham, and Woldingham in the rural district of Godstone ;

The parishes of Artington, East Clandon, East Horsley, Merrow, Ockham, Pirbright, Send and Ripley, West Clandon, West Horsley, Wisley and Worplesdon ; and part of the parish of Compton in the rural district of Guildford ;

The parishes of St. Martha (Chilworth) and Shalford in the rural district of Hambledon ;

The parishes of Betchworth, Buckland, Chaldon, Chipstead, Gatton, Merstham, Nutfield, and Walton-on-the-Hill ; and Kingswood Liberty in the rural district of Reigate.

SECOND SCHEDULE.

Sections 1, 2.

PARTICULAR MATTERS WHICH MAY BE REFERRED TO THE ADVISORY COMMITTEE.

PART I.

*Matters in respect of which the additional members are to form
part of the Advisory Committee.*

- (a) The co-ordination of all or any of the various forms of transport services, and co-operation between the persons operating the same or different forms of transport services with a view to the combined operation of all means of transport in the London Traffic Area in the best interests of the public ;
- (b) The causes tending to hinder the free circulation of traffic on streets in the London Traffic Area and the measures to be adopted to remove such causes or to minimise their effects ;
- (c) The desirability of the revision, simplification, codification and extension of existing enactments, orders, regulations and byelaws, and of the initiation of new legislation, with regard to or affecting traffic on streets in the London Traffic Area ;
- (d) The making of new orders, byelaws and regulations (including the fixing of speed limits) relating to traffic on streets in the London Traffic Area ;
- (e) The provision of sufficient headroom in the construction of new bridges over streets, and the proper marking and lighting of structures across streets which do not provide sufficient headroom ;

- (f) The comparative desirability of different forms of transport services in various circumstances either generally or in particular localities, or in any specific case.

PART II.

Matters in respect of which the additional members are, if the Minister so directs, to form part of the Advisory Committee.

- (g) The development, improvement, or extension of the existing system of road communication within the London Traffic Area ;
- (h) New transport systems or developments or extensions of existing systems proposed to be established or carried out within the London Traffic Area ;
- (i) The exercise of any of the powers of the Minister from whatsoever source derived in relation to traffic on streets in the London Traffic Area, with the exception of any matters dealt with by him in virtue of section seven of this Act.

PART III.

Matters in respect of which the additional members are not to form part of the Advisory Committee.

- (j) The formulation of proposals for the equitable distribution amongst the various road authorities in the London Traffic Area of the cost of any scheme of road development, improvement or extension.

Section 10.

THIRD SCHEDULE.

PURPOSES OR MATTERS FOR OR WITH RESPECT TO WHICH REGULATIONS MAY BE MADE BY THE MINISTER.

- (1) For prescribing the routes to be followed by all classes of traffic, or of any particular class or classes of traffic or vehicles, from one specified point to another, either generally or between any specified times.
- (2) For prescribing streets which are not to be used for traffic by vehicles of any specified class or classes, either generally or at specified times.
- (3) For regulating the relative position in the roadway of traffic of differing speeds or types.

(4) For prescribing the places where vehicles or vehicles of any particular class or description may not turn so as to face in the opposite direction to that in which they were proceeding, or where they may only so turn under conditions prescribed by the regulations.

(5) For prescribing the conditions subject to which, and the times at which, articles of exceptionally heavy weight or exceptionally large dimensions may be carried by road.

(6) For prescribing the number and maximum size and weight of trailers which may be drawn on streets by vehicles or vehicles of any particular class or description either generally or on streets of any class or description, and for prescribing that a man should be carried on the trailer or, where more than one trailer is drawn, on the rear trailer for signalling to the driver.

(7) For prescribing the conditions subject to which, and the times at which, articles may be loaded on to or unloaded from vehicles, or vehicles of any particular class or description, on streets.

(8) For prescribing the conditions subject to which, and the times at which, vehicles, or vehicles of any particular class or description, delivering or collecting goods or merchandise, or delivering goods or merchandise of any particular class or classes, may stand in streets, or in streets of any class or description, or in specified streets;

(9) For prescribing the conditions subject to which, and the times at which, vehicles, or vehicles of any particular class or description, may be used on streets for collecting refuse.

(10) For prescribing rules as to precedence to be observed as between vehicles proceeding in the same direction, or in opposite directions, or when crossing.

(11) For prescribing the conditions subject to which, and the times at which, horses, cattle, sheep and other animals may be led or driven on streets within the Metropolitan police district and the city of London.

(12) For requiring the erection, exhibition, and removal of traffic notices, and as to the form, plan, and character of such notices.

(13) Broken down vehicles.

(14) Vehicles, or vehicles of any particular class or description, when unattended.

(15) Places in streets where vehicles, or vehicles of any particular class or description, may, or may not, wait either generally or at particular times.

(16) Cab ranks and ranks and stopping places of omnibuses and other public conveyances.

(17) Cabs and hackney carriages not hired and being in a street elsewhere than on a cab rank.

(18) For restricting the use of vehicles and animals, and of sandwichmen and other persons, in streets for the purposes of advertisement of such a nature or in such a manner as to be likely to be a source of danger or to cause obstruction to traffic.

(19) The lighting and guarding of street works.

(20) The erection or placing or the removal of any works or objects likely to hinder the free circulation of traffic in any street, or likely to occasion danger to passengers or vehicles.

(21) Queues of persons waiting in streets.

(22) Priority of entry to public vehicles.

(23) For enabling any police, local or other public authority, in the event of any person failing to do anything which under the regulations he ought to have done, to do such act, and to recover the expenses thereof from the person so in default summarily as a civil debt.

CHAPTER 35.

An Act to amend the financial provisions of the Housing, &c. Act, 1923, and for other purposes incidental thereto or connected therewith.

[7th August 1924.]

BE it enacted by the King's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Extension
of 13 & 14
Geo. 5. c. 24.
to houses
completed
before 1st
October
1939.

1.—(1) Subject to the provisions of this Act, sections one and three of the Housing, &c. Act, 1923 (which relate to contributions by the Minister of Health to the expenses of local authorities in assisting the construction of houses and to the expenses of public utility societies and other bodies in building houses), shall extend to houses which are provided in pursuance of proposals approved by the Minister and are completed before the first day of October, nineteen hundred and thirty-nine, and so much of that Act as limits the operation of those sections to houses completed before